

The National Council For Teacher Education Rules, 1997

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Union of India - Act

The National Council For Teacher Education Rules, 1997

UNION OF INDIA

India

The National Council For Teacher Education Rules, 1997

Rule THE-NATIONAL-COUNCIL-FOR-TEACHER-EDUCATION-RULES-1997 of 1997

Published on 3 December 1997

Commenced on 3 December 1997

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The National Council For Teacher Education Rules, 1997

Published vide Notification Gazette of India, G.S.R. 689(E) dated 3rd December, 1997.

1809.

G.S.R. 689(E) dated 3rd December, 1997. - In exercise of powers conferred by section 31 of the National Council for Teacher Education Act 1993 (

73 of 1993

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the National Council for Teacher Education Rule, 1997.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the National Council for Teacher Education Act, 1993 (73 of 1993

)

(b)

"Council" means the National Council for Teacher Education established under sub-section (1) of section 3;

(c)

"Executive Committee" means the Committee constituted by the Council under section 19;

(d)

"section" means a section of the Act.

(2)

All other words and expressions used herein and not defined but defined in the Act shall have the same meanings respectively assigned to them in the Act.

3.

Certain Expert Members of the Council.

(1)

The expert members shall be appointed under sub-clause (v) of clause (m) of sub-section (4) of section 3 alternatively from the first cycle and the second cycle as specified in sub-rules (2) and (3).

(2)

The first cycle of expert members shall be one each belonging to the following fields, namely :-

(a)

natural sciences;

(b)

social sciences;

(c)

educational technology

(3)

The second cycle of expert members shall be one each belonging to the following fields, namely :-

(a)

linguistics;

(b)

vocational education and work experience;

(c)

special education.

4.

Members representing States and Union Territories.

- The manner of representation of the States and Union Territories by the members appointed under clause (n) of sub-section (4) of section 3, shall be as under :-

(a)

one representative each of eight State Governments from the different parts of India identified by keeping in view the strength of teaching community in each State, subject to the condition that at least one State from each of the regions which is covered by the Regional Committees shall be included.

(b)

One representative of the Union Territory Administrations keeping in view the strength of the teaching community, the need for regional representation and such other factors relating to teacher education as may be deemed appropriate by

the Central Government.

(c)

The term of office of members appointed under clause (n) of sub-section (4) of section 3 shall be two years from the date of their appointment or till fresh appointments are made, whichever is later.

5.

Conditions of service of the Chairperson, the Vice-Chairperson and the Member-Secretary.

(1)

The Chairperson, the Vice-Chairperson and the Member-Secretary shall be entitled to draw pay as approved by the Central Government from time to time.

(2)

The Chairperson, the Vice Chairperson and the Member-Secretary shall be entitled to, in addition to pay, Dearness Allowance, House Rent Allowance, City Compensatory Allowance, and such other allowances appropriate to their pay as admissible to the Central Government officers of equivalent grade. The Chairperson may be provided, in lieu of House Rent Allowance, Rent free unfurnished accommodation within the ceiling prescribed by the Government of India, from time to time.

(3)

The Chairperson, the Vice-Chairperson and the Member-Secretary shall be entitled to such terminal benefits as may be specified by the Central Government in respect of officers of the Central Government of equivalent grade :

Provided that an employee of any university or institution maintained by Central Government, if appointed as the Chairperson, the Vice-Chairperson or the Member-Secretary shall be allowed to continue to contribute to any Provident Fund of which that person was a member and the Council shall contribute to the accounts of such person in that Provident fund at the same rate at which such person had been receiving employer's contribution immediately before his or her appointment as the Chairperson, the Vice - Chairperson or the Member-Secretary, as the case may be.

(4)

The Chairperson, the Vice-Chairperson and Member-Secretary shall be entitled to leave, medical benefits (for self and family), allowance on transfer for joining the post as well as on joining the Parent Department on repatriation from the Council, as per rules, regulations, orders and instructions issued by the Central Government from time to time in respect of its own officials in the corresponding scales of pay.

(5)

(a)

The Chairperson, the Vice-Chairperson and the Member-Secretary shall be entitled to use the Council's staff car for official purposes.

(b)

The Chairpersons, the Vice-Chairperson and the Member-Secretary shall also be entitled to use staff car of the Council, for private purposes on payment basis on the conditions laid down by the Central Government under the Staff Car Rules for use of Government staff cars for private purposes by officers of the Central Government.

(6)

The Council shall make necessary payment towards leave salary, pension or contributory Provident fund, as the case may be, as well as the transfer travelling allowance as provided under the general orders of the Government of India governing deputation/foreign service from time to time in respect of the Chairperson, the Vice-Chairperson and the Member-Secretary.

6.

Travelling and Daily Allowances to Members.

(1)

The Chairperson, the Vice-Chairperson and the Member-Secretary shall be entitled to travelling allowance and daily allowance for official tours and journeys at the rates as applicable to the Central Government Officers of their equivalent grades.

(2)

The non-official members of the Council including the members appointed under clauses (l), (m) and (p) of sub-section (4) of section 3, shall be entitled to travelling allowance and daily allowance for official tours and journeys in accordance with the orders issued by the Central Government in relation to the non-official members of Committees and

Commissions and such like categories of persons.

(3)

Members appointed under clauses (d), (f), (g), (h), (i), (j), (k) and (n) of sub-section (4) of section 3 shall be entitled to receive reimbursement of travelling allowance and daily allowance; if so desired, at the rate applicable to them in their respective organisation.

(4)

Members appointed under clause (e) of sub-section (4) of section 3 shall be entitled to travelling allowance and daily allowance for official tours and journeys as admissible for attending the meeting of the University Grants Commission.

(5)

Members of Parliament nominated as Members under clause (o) of sub-section (4) of section 3 shall be entitled to travelling allowance and daily allowance as per orders applicable to the Members of the respective House for attending such meetings.

7.

Powers and duties of the Chairperson.

(1)

The Chairperson shall be the Principal Executive Officer of the Council and shall be responsible for the proper administration of the affairs of the Council and its Regional Committees.

(2)

The Chairperson shall determine the duties of all officers and staff of the Council and its Regional Committees and shall also exercise such supervision and control over them as may be necessary to carry out the functions of the Council.

(3)

It shall be the duty of the Chairperson to ensure that the Council and the bodies constituted under the Council carry out the objectives of the Act.

(4)

The Chairperson shall, except in cases in which approval of Government of India is required, issue such orders and directions as may be considered necessary in anticipation of approval of the Council or of the constituted bodies of it; if the matter cannot be delayed and shall place the orders and directions before the Council at its next meeting.

(5)

The Chairperson shall have the power to approve schemes for research, studies, development activities, publications and allied matters for the furtherance of objects of the Act, subject to such conditions and guidelines as may be laid down by the Council in this behalf and availability of funds as may be earmarked for such purposes.

(6)

The Chairperson shall have the power to engage eminent persons for a period not exceeding six months at a time for the work of the Council as Consultants or Advisers on contractual basis, on the same terms and conditions and remuneration as specified by the Government of India in case of appointment of Consultants by it.

8.

[Inspection.

[Substituted by G.S.R. 747(E), dated 15th September, 2003 (w.e.f. 15th September, 2003)]

(1)

The Council may inspect the recognised institutions in the manner specified in sub-rules (2) to (8).

(2)

The Council shall approve a panel of names of experts in teacher education or educational administration who may be able to inspect the recognised institutions. The Chairman shall nominate at least two persons out of the panel of experts to a inspection team.

(3)

The Council shall give a notice of its intention to the institutions alongwith a questionnaire in Form-IV seeking information within fifteen days on all relevant matters relating to the institution.

(4)

On receipt of the completed questionnaire, the Council shall communicate the names of the members of inspection team and the date of inspection to the institution.

(5)

The institution to be inspected shall nominate its one officer or employee, to be associated with the inspection team.

(6)

The inspection team shall ascertain as to whether the institution is functioning in accordance with the provisions of the Act and the rules and regulations made thereunder.

(7)

The members of the inspection team may, if deem necessary, interact with the faculty members and other employees of the institution.

(8)

The inspection team shall submit its report to the Council within a period of fifteen days from the last day of the inspection.]

[9. Fees. - Every application made under sub-section (1) of section 14 to the concerned Regional Committee for obtaining grant of recognition under the Act by any institution offering or intending to offer a course or training in teacher education on or after the appointed day and every application made under Sub-section (1) of Section 15 to the concerned Regional Committee for grant of permission for starting any new course or training in teacher education or for increasing intake in respect of an existing course by a recognized institution shall be accompanied by a fee of Rs. 40,000:

Provided that Government institutions shall be exempt from payment of the fee under this rule.]

[Substituted by Notification No. G.S.R. 801 (E) dated 6.10.2003 (w.e.f. 3.12.1997)]

[10 (1) Any person aggrieved by a refusal order made under Section 14 or Section 15 or withdrawal order made under Section 17 of the NCTE Act, may prefer an appeal in Form I or Form II appended to these Rules, to the Council within Sixty days of issue of such orders, along with a fee of Rs. 10,000/- payable online with the submission of appeal :

Provided that an appeal may be admitted after the expiry of the said period of sixty days, if the appellant satisfies the Council that he had sufficient cause for not preferring the appeal within the period of limitation of sixty days.

(2)

The appeal may be submitted electronically through online mode on the website of National Council for Teacher Education along with processing fee of Rs. 10,000/-. The appellant shall download the filled in online application and post two sets of hard copies accompanied with the requisite documents, to the Member Secretary, NCTE, New Delhi within two days of online submission of the appeal.]

11.

Procedure for disposal of appeals.

(1)

On receipt of memorandum of appeal, the Council shall call for the records of the case from the Regional Committee concerned which passed the order appealed against and after giving the appellant a reasonable opportunity of being heard pass such orders as it may deem fit.

(2)

The appellant shall be entitled to be represented by an employee or officer of the appellant institution.

(3)

The Council shall decide every appeal as expeditiously as possible and ordinarily every appeal shall be decided on a perusal of documents, memorandum of appeal, written arguments, if any, affidavits and after hearing such oral arguments as may be advanced.

(4)

The Council shall endeavour to dispose of every memorandum of appeal within a period of three months for the date of its filing.

(5)

The Council shall not ordinarily allow more than three adjournments in any appeal.

12.

Membership of the Executive Committee Member representing States.

(1)

Four State representatives as members of the Executive Committee of the Council under clause (i) of sub-section (2) of Section 19 shall be nominated by the Central Government in the following manner :-

(a)

One representative of a State from each of the Region which is covered by the four Regional Committees.

(b)

States which are already represented on the Council in terms of clause (n) of sub-section (4) of section 3 shall not be included while considering nominations under clause (i) of sub-section (2) of section 19.

(2)

The members of the Executive Committee appointed under clause (l) of sub-section (2) of section 19 shall hold office for a period of two years and a State once represented shall be eligible for further representation only after a gap of two years subject to adherence of clause (b) of sub-rule (1).

13.

Budget.

(1)

The Council shall prepare the budget in respect of the financial year next ensuing, in Form II appended to these rules and submit the same for its consideration not later than 30th September of every calendar year.

(2)

A copy of the budget shall be forwarded to the Central Government with the approval of the Chairperson in anticipation of approval of Executive Committee of the Council if it is found not possible to obtain approval of Executive Committee in time.

14.

Annual Report.

(1)

The Council shall prepare once in every year its annual report in Form III appended to these rules.

(2)

The Council shall submit its annual report in respect of its activities in a previous financial year to the Central Government within nine months of the end of the financial year.

Form I

Memorandum Of Appeal

[See rule 11]

Appeal Before The National Council For Teacher Education Under Section 18 Of Ncte Act, 1993

Appeal No..... of 19.....

ABC?.....

Appellant

(here

furnish complete postal address)

versus

DEF?.....

Respondent

To

The Member Secretary,

National Council for Teacher Education,

New Delhi.

Sir,

The appellant named above begs to prefer this Memorandum of appeal under section 18 of the National Council for Teacher Education Act, 1993 on the following facts and grounds :-

Facts

1. Yours above-mentioned appellant had applied to the Regional Committee under section _____ of the National Council for Teacher Education Act, 1993 (

73 of 1993

) for _____.

2. The Regional Committee _____ refused to grant such _____ vide its order dated _____ a copy of which is attached.

For the reasons set out below, your appellant(s) submit(s) that the _____ ought to have been

granted by the Regional Committee.

The Regional Committee erred in deciding the matter on the following grounds.

Grounds Of Appeal

- 1.
- 2.
- 3.

Prayer

The appellant therefore prays that the order appealed against may be set aside and appropriate relief granted to the appellant.

Date :

I/We _____ the appellant(s) above named hereby declare that what is stated herein is true to the best of my/our information and belief and nothing material has been suppressed or concealed.

Place :

Date :

Signature of the appellant his authorised signatory

Address of the appellant (s)

Notes. -1. Delete inappropriate words or letters.

2. The memorandum of appeal should be accompanied by a fee of Rs. 1,000 paid by way of crossed demand draft in favour of the National Council for Teacher Education, New Delhi payable at New Delhi. The fee is non-refundable and non-transferable. Memorandum of appeal received without the prescribed fee shall not be entertained.

3. A copy of the order appealed against should invariably be enclosed to the memorandum of appeal.

4. The appeal should be submitted in duplicate, both copies complete with all enclosures, Copies of the documents relied upon should be appended to the memorandum of appeal.

5. All documents enclosed to the appeal should be duly authenticated by the appellant.

6. The Memorandum of Appeal -

(i)

Should be on plain paper neatly typed in double space.

(ii)

Should be addressed to the Member-Secretary, National Council for Teacher Education by designation only.

(iii)

Should contain an index for list of documents indicating page numbers consecutively given.

(iv)

Should be complete in all respects and contain all material statements and arguments on which reliance is placed. The Statements contained in the appeal should be duly supported by documentary evidence, whenever necessary.

(v)

Should not contain any extraneous or irrelevant points.

(vi)

Should be divided into suitable paragraphs, each paragraph containing a specific point or issue.

(vii)

Should not contain any disrespectful or improper language.

(viii)

Should be signed on the left hand side bottom of every page by an authorised person giving his/her official position with the office seal of the institution on whose behalf the appeal is being preferred. Corrections, if any, should be duly initialled.

7. If there are any deficiencies in the form or content of the appeal or any other shortcomings, the appellant shall be given an opportunity to cure them within 15 days of the issue of a communication in this regard from the Council. No extension of time will be allowed for this purpose.

Form II

(See rule 13)

National Council For Teacher Education

16.

, I.P. Estate, New Delhi - 110002

Budget And Account Heads

Head of Accounts (Expenditure)

I. Recurring

Personnel Services

1. Salaries of officers and Establishment

2. Tuition fee/Children Education Allowance

3. Honorarium

4. Over-time Allowance

5. Leave Travel Concession

6. Medical Reimbursement

7. Leave Salary and Pension Contribution

8. Contributory Provident Fund and Interest thereon

9.

Retirement benefits/Gratuity

10.

Bonus

11. Consultants Fee

12. Other Allowance

II. Wages

III. Rent for Accommodation

(1)

Residential Building

(2)

Official Building

IV. (A) Travel Expenses

(1)

Domestic Travel Expenses

(2)

Local Conveyance

IV. (B) Foreign Travel Expenses

IV. (C) Processing of applications of Institutions for recognition by Regional Committees

IV. (D) Travel Allowance/Dearness Allowance/Honorarium to non-officials

V. (A) Office Expenses

1. Audit Fees

2. Advertisement charges

3. Electricity/Water charges

4. Staff Car/Taxi

(a)

Petrol/oil/Lubricant

(b)

Repair and Maintenance

(c)

Hiring charges for Taxies

5. Hospitality and Entertainment

6. Legal Charges

7. Liveries

8. Postage and Telegrams

9. Printing and Stationery

10. Books and Periodicals

11. Telephone Charges

12. Bank Charges

13. Miscellaneous office expenses

V (B) Meetings of the Council and its Committees

VI. Projects/Programmes

Non-Recurring

1. Furniture and Fixtures

2. Machinery and Equipment

3. Library Networking and Documentation, etc.

4. Building (New Proposal)

Head of Accounts (Receipts)

1. Grants received from the Ministry of Human Resource Development

2. Sales Proceeds of Application Forms

3. Fees for recognition of Institutions

4. Other receipts

Form III

(See rule 14)

Form Of The Annual Report

Chapter I

Introduction

Chapter II

An overview of the activities during the previous year

Chapter III

National Headquarters

Chapter IV

Regional Committees

Chapter V

International Interaction

Chapter VI

Projects and Programmes

Chapter VII

Publications

Chapter VIII

Any other important matter dealt with by the National Council for Teacher Education.

[Form IV]

[Added by G.S.R. 747 dated 15th September, 2003 (w.e.f. 15th September, 2003)]

(See sub-rule (3) of rule 8)

Questionnaire for Inspection

Inspection of Recognised Institutions

(Under Section 13 of the National Council for Teacher Education Act, 1993)

Self-appraisal Format

Profile of the Teacher Education Institution

1.| Name of the institution

| |

2.| Address for communication

| |

| |

| |

| |

3.| Phone No. (with STD Code) | : | |

4.| Fax No. | : | |

5.| E-mail | : | |

6.| Date of establishment of the institution| :| |

7.| Course(s) offered

| {|

1

2

3

4

5

Name of the course in full

Stage/level

Duration

Year of starting the course

Intake approved

|

|}

8.| Name of the University/Examining Body to which the institution is a affiliated :

|

9.| Number and date of the order of the Regional Committee granting recognition/Permission (course wise)| :| |

10.| Mode of selection of candidates :

Yes

No

(a)

Centralised test at the
state level

(b)

Test conducted by the
university

(c)

Test conducted by the
institution

(d)

Test conducted by an
independent agency

(e)

Based on marks obtained
in the qualifying examination

(f)

By the management

11.| Criteria for admission

(a)

As per National Council for Teacher Education norms

(b)

Norms superior to National Council for Teacher Education

(c)

In relaxation of National Council for Teacher Education norms with respect to minimum percentage of marks

(d)

In relaxation of national Council for Teacher Education norms with respect to qualifying course

(e)

In relaxation of special eligibility provisions of National Council for Teacher Educationa norms such as participation in
national/regional/state/university level events

(f)

In relaxation of professional experience

(g)

In relaxation of professional experience and performance in qualifying course

12.] Academic calendar of the outgoing academic session

D

D

M

M

Y

Y

(a)

Start of admission

D

D

M

M

Y

Y

(b)

Closure of admission

D

D

M

M

Y

Y

(c)

Start of teaching

D

D

M

M

Y

Y

(d)

Last teaching day

(e)

Number of teaching days

(f)

Number of days of vacation/break during the academic session

13.] Practice Teaching at School

(a)

Total number of practicing teaching days

(b)

Minimum number of practice teaching lessons given by each student

14.] Pre-practice teaching at the institution

(a)

Number of pre-practice teaching days

(simulated/micro-teaching/any other)

(b)

Minimum number of pre-practice teaching lessons given by each

student

(c)

Total number of demonstration lessons held

15.] Examinations

(a)

Number of sessional tests held for each paper

(b)

Number of assignments for each paper

D

D

M

M

Y

Y

(c)

Date of commencement of annual examination

D

D

M

M

Y

Y

(d)

Date of declaration of result

D

D

M

M

Y

Y

(e)

Date of submission of dissertation (Post-graduate course)

16.] Scheme of examination

Yes

No

(a)

External examination only

(b)

Internal and external examinations

(c)

Internal examination only

17.] Student support and progression

(a)

Number of students who appeared in the final examination

(b)

Number of students who passed in the examination

(c)

Number of students who failed in the examination

(d)

Number of students who joined higher studies

(e)

Number of students who took-up teaching employment

(f)

Number of students who secured employment through the institution

18. Teaching Resources

Yes

No

(a)

Principal/Head of the Department is in position

(b)

Number of teachers employed on full-time basis

(c)

Number of teachers employed on part-time basis

(d)

Number of Guest lecturers engaged

(e)

Number of teachers on regular scale of pay

(f)

Number of teachers on consolidated remuneration

(g)

Number of teachers with qualifications as per NCTE norms

(h)

Number of teachers yet to qualify NET/SLET

(i)

Numbers of teachers yet to obtain post-graduate degree in education

(j)

Number of teachers without school experience

19. Professional Development of Teachers

(a)

Number of teachers who attended in-service courses during the preceding year

(b)

Number of teachers enrolled in part-time post-graduate course in education (M.Ed./M.A.(Education)/M.Phil)

(c)

Number of teachers enrolled in full-time post-graduate course in education (M.Ed./M.A.(Education)/M.Phil)

(d)

Number of teachers enrolled in Ph.D. programme

(e)

Number of teachers who participated in seminars/conferences/workshops

(f)

Number of papers published by the teachers

(g)

Number of teachers who received professional recognition/awards

20. Land and Building

Yes

No

(a)

Institution functions from its own building

(b)

Institution functions from a rented building

(c)

Institution building is under construction

(d)

Institution building is shared for running another course(s)

(e)

Title of the land is on free-hold ownership basis

(f)

Title of the land is on long-lease as per law

21. Educational Technology

(a)

Number of computers with supporting accessories

Yes

No

(b)

Access to Internet

(c)

Number of hands-on experience hours provided to each student per week

(d)

Number of education related CD-ROMs available

(e)

Number of education related video-cassettes available

(f)

Number of education related audio-cassettes available

(g)

Website of the institution

(h)

Availability of Liquid Crystal Display (LCD)

(i)

Availability of Over-Head Projector (OHP)

(j)

Availability of Tele-Vision (TV)

(k)

Availability of Video Cassette Recorder (VCR)

(l)

Availability of public-address system

22. Library resources

(a)

Number of books in the library

(b)

Number of books added to the library during the preceding year

(c)

Total Number of educational journals/periodicals being subscribed

(d)

Number of encyclopaedia available in the library

(e)

Number of books available in the reference section of the library

(f)

Total seating capacity in the library

23. Sports and Physical Education Resources

Institution has

Yes

No

(a)

Playground (football/hockey etc.)

(b)

Playground (football/hockey etc.) of another institution on sharing basis

(c)

Gymnasium/Multipurpose hall

(d)

Facilities for gymnasium

(e)

Facilities for athletics

(f)

Facilities for Health Education

(g)

Facilities for Anatomy Lab

(h)

Facilities for Physiology Lab

Organisation and Management

Yes

No

24.

Institution is

(a)

Government owned

(a)

Aided

(b)

Unaided

(c)

University Department

25.

(a)

Minimum emoluments (basic pay and allowances) paid to teachers on regular appointment is

(b)

Minimum emoluments (basic pay and allowances) paid to teachers on adhoc service is

(c)

Minimum consolidated remuneration paid to teacher is

(d)

Per lecture honorarium paid to guest lecturers is

Yes

No

26.

(a)

Salaries are paid in cash

(b)

Salaries are paid through account payee cheque

Yes

No

27.

- (a)
Salaries are disbursed each month
- (b)
Teachers are paid salary for the vacation period
- Expenditure and Receipts
- 28.
- (a)
Salaries paid to teaching staff during the preceding financial year
- (b)
Salaries paid to non-teaching staff during the preceding financial year
- (c)
Amount spent on utilities during the preceding financial year
- (d)
Amount spent on purchase of books and journals for the library during the preceding financial year
- (e)
Amount spent on purchase of equipment during the preceding financial year
- (f)
Amount spent on purchase of furniture during the preceding financial year
- (g)
Amount spent on capital expenditure during the preceding financial year
- (h)
Amount spent on contingencies during the preceding financial year
- 29.
- (a)
Amount carried forward from the previous financial year
- (b)
Receipts from fees (tuition and all other fees) during the preceding financial year
- (c)
Receipts from donation during the preceding financial year
- (d)
Receipts from consultancies and extension programmes during the preceding financial year
- (e)
Amount of grants received from the governments during the preceding financial year
- (f)
Income from investments during the preceding financial year
- Yes
- No
- 30.
- Excess of expenditure over income
- Amount of excess expenditure over income.
- 31.
- The institutional accounts of the preceding financial year have been audited
- Endowment fund and Reserve Fund
- 32.

(a)

Amount of Endowment fund

(b)

Amount of Reserve fund

Yes

No

(c)

Endowment fund is maintained jointly with NCTC

33.

Resume of the institution

Brief appraisal of the overall performance of the institution during the preceding academic session and plans for future development may be given.

(Signature of the Head of the Institution/Principal)

(Signature of the Manager/Secretary of the Society/Trust)

[Substituted by Notification No. G.S.R. 675 (E) dated 13.9.2011 (w.e.f. 3.12.1997)]

Related AI tags, queries and research notes

Translation